

No. 157. An act relating to legislative review of reporting requirements.

(H.907)

It is hereby enacted by the General Assembly of the State of Vermont:

* * * Repeal of Reporting Requirements * * *

Sec. 1. 3 V.S.A. § 2313 is amended to read:

§ 2313. PERFORMANCE CONTRACTS AND GRANTS

(a) The Chief Performance Officer shall assist agencies as necessary in developing performance measures for contracts and grants.

(b) ~~Annually, on or before July 30 and as part of any other report requirement to the General Assembly set forth in this subchapter, the Chief Performance Officer shall report to the General Assembly on the progress by rate or percent of how many State contracts and grants have performance accountability requirements and the rate or percent of contractors' and grantees' compliance with those requirements. [Repealed.]~~

Sec. 2. 3 V.S.A. § 331 is amended to read:

§ 331. TEMPORARY EMPLOYEES

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(c)(1) The Commissioner may authorize the continued employment of a person in a temporary capacity for more than 1,280 hours in any one calendar year if the Commissioner determines, in writing, that a bona fide emergency exists for the appointing authority that requires such continued employment.

* * *

(3) The Commissioner may authorize seasonal employment in a specific position for a period of between seven and 12 months if the Commissioner determines, in writing, that the nature and duties of the position require the employment of a person for a period of more than seven months in a 12-month period. The Commissioner shall not authorize seasonal employment for a period of more than seven months in a 12-month period if the authorization is intended to circumvent, or has the effect of circumventing, the policies and purposes of the classified service under this chapter. ~~Annually, on or before January 15, the Commissioner shall submit a report to the House Committee on Government Operations and Military Affairs and the Senate Committee on Government Operations:~~

~~(A) the total number of positions in seasonal employment that have been authorized for a period of between seven and 12 months during the prior calendar year;~~

~~(B) the agency or department that each position identified in subdivision (A) of this subdivision (3) is assigned to; and~~

~~(C) the period of time that each identified position is authorized for.~~

* * *

Sec. 3. 6 V.S.A. § 2972 is amended to read:

§ 2972. POWERS AND DUTIES

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(b) Included among the powers of the Council in connection with the enforcement of this chapter are the powers to require reports from any person subject to this chapter; to adopt, rescind, modify, and amend all proper and necessary rules and orders to administer this chapter, which rules and orders shall be adopted by publication in the manner prescribed by the Council and shall have the force and effect of law when not inconsistent with existing laws; to administer oaths, subpoena witnesses, take depositions, and certify to official acts; to require any dealer to keep such true and accurate records and to make such reports covering purchases, sales, and receipts of dairy products and related matters as the Council deems reasonably necessary for effective administration, which records shall be open to inspection by the Secretary of Agriculture, Food and Markets at any reasonable time and as often as may be necessary, but information thus obtained shall not be published or be open to public inspection in any manner revealing any individual dealer's identity, except as required in proceedings to enforce compliance; and to keep accurate books, records, and accounts of all of its dealings; ~~and to make annually a full report of its doings to the House Committee on Agriculture, Food Resiliency, and Forestry and the Senate Committee on Agriculture and the Governor, which shall show the amount of money received and the expenditures thereof.~~ The report shall be submitted on or before January 15. The Vermont Agency of Agriculture, Food and Markets shall perform the administrative work of the Council as directed by the Council. The Council shall reimburse the Agency

of Agriculture, Food and Markets for the cost of services performed by the Agency.

* * *

Sec. 4. 6 V.S.A. § 4810 is amended to read:

§ 4810. AUTHORITY; COOPERATION; COORDINATION

* * *

(d) Cooperation and coordination. The Secretary of Agriculture, Food and Markets shall coordinate with the Secretary of Natural Resources in implementing and enforcing programs, plans, and practices developed for reducing and eliminating agricultural nonpoint source pollutants and discharges from farms. The Secretary of Agriculture, Food and Markets shall cooperate with the Secretary of Natural Resources in the implementation of the federal Clean Water Act for Concentrated Animal Feeding Operations (CAFOs). The Secretary of Agriculture, Food and Markets shall implement the State's comprehensive, complementary nonpoint source program. The Secretary of Agriculture, Food, and Markets and the Secretary of Natural Resources shall coordinate regarding program administration; grant negotiation; grant sharing; implementation of the antidegradation policy including to new sources of agricultural nonpoint source pollutants, and watershed planning activities to comply with Pub. L. No. 92-500. In accordance with 10 V.S.A. § 1259(i), the Secretary of Natural Resources, in consultation with the U.S. Environmental Protection Agency and the Secretary

of Agriculture, Food and Markets, shall issue a document that sets forth the respective roles and responsibilities of the Agency of Natural Resources in implementing the federal Clean Water Act on farms and the Agency of Agriculture, Food and Markets' roles and responsibilities in implementing the State's complementary nonpoint source program on farms. The document shall be consistent with and equivalent with the federal National Pollutant Discharge Elimination System permit regulations for discharges from CAFOs. The document will replace the memorandum of understanding between the agencies. The allocation of duties under this chapter between the Secretary of Agriculture, Food and Markets and the Secretary of Natural Resources shall be consistent with the Secretary's duties, established under the provisions of 10 V.S.A. § 1258(b), to comply with Pub. L. No. 92-500. The Secretary of Natural Resources shall be the State lead person in applying for federal funds under Pub. L. No. 92-500 but shall consult with the Secretary of Agriculture, Food and Markets during the process. The agricultural nonpoint source program may compete with other programs for competitive watershed projects funded from federal funds. The Secretary of Agriculture, Food and Markets shall be represented in reviewing these projects for funding. Actions by the Secretary of Agriculture, Food and Markets under this chapter concerning agricultural nonpoint source pollution shall be consistent with the water quality standards and water pollution control requirements of 10 V.S.A. chapter 47 and the federal Clean Water Act as amended. In addition, the Secretary of

Agriculture, Food and Markets shall coordinate with the Secretary of Natural Resources in implementing and enforcing programs, plans, and practices developed for the proper management of composting facilities when those facilities are located on a farm. ~~The Secretary of Agriculture, Food and Markets and the Secretary of Natural Resources shall each develop three separate measures of the performance of the agencies under the federal Clean Water Act and State nonpoint source regulatory authority, and annually on or before January 15, the Secretary of Agriculture, Food and Markets and the Secretary of Natural Resources shall submit separate reports to the Senate Committee on Agriculture, the House Committee on Agriculture, Food Resiliency, and Forestry, the Senate Committee on Natural Resources and Energy, and the House Committee on Environment regarding the success of each agency in meeting its selected performance measures.~~

Sec. 5. 10 V.S.A. § 1978 is amended to read:

§ 1978. RULES

* * *

(e)(1) The Secretary shall periodically review and, if necessary, revise the rules adopted under this chapter to ensure that the technical standards remain current with the known and proven technologies regarding potable water supplies and wastewater systems.

* * *

~~(3) The Technical Advisory Committee shall provide annual reports, starting January 15, 2003, to the Chairs of the House Committee on Corrections and Institutions and the Senate Committee on Institutions. The reports shall include information on the following topics: the implementation of this chapter and the rules adopted under this chapter; the number and type of alternative or innovative systems approved for general use, approved for use as a pilot project, and approved for experimental use; the functional status of alternative or innovative systems approved for use as a pilot project or approved for experimental use; the number of permit applications received during the preceding calendar year; the number of permits issued during the preceding calendar year; and the number of permit applications denied during the preceding calendar year, together with a summary of the basis of denial.~~

[Repealed.]

* * *

Sec. 6. 16 V.S.A. § 164 is amended to read:

§ 164. STATE BOARD; GENERAL POWERS AND DUTIES

The State Board shall engage local school board members and the broader education community and, consistent with the provisions of this title, its own rules, and rules adopted by the Secretary, establish and regularly update a long-term strategic vision for the delivery of educational services in Vermont; advise the General Assembly, the Governor, and the Secretary of Education on high-priority educational policies and issues as they arise; and act in

accordance with legislative mandates, including the adoption of rules and executing special assignments. In addition to other specified duties, the Board shall:

* * *

(17) ~~Report annually on the condition of education statewide and on a supervisory union and school district basis. The report shall include information on attainment of standards for student performance adopted under subdivision (9) of this section, number and types of complaints of hazing, harassment, or bullying made pursuant to chapter 9, subchapter 5 of this title and responses to the complaints, financial resources and expenditures, and community social indicators. The report shall be organized and presented in a way that is easily understandable by the general public and that enables each school, school district, and supervisory union to determine its strengths and weaknesses. To the extent consistent with State and federal privacy laws and regulations, data on hazing, harassment, or bullying incidents shall be disaggregated by incident type, including disaggregation by ethnic groups, racial groups, religious groups, gender, sexual orientation, gender identity, disability status, and English language learner status. The Secretary shall use the information in the report to determine whether students in each school, school district, and supervisory union are provided educational opportunities substantially equal to those provided in other schools, school districts, and supervisory unions pursuant to subsection 165(b) of this title. [Repealed.]~~

* * *

Sec. 7. 16 V.S.A. § 829 is amended to read:

§ 829. PREKINDERGARTEN EDUCATION

* * *

(e) Rules. The Secretary of Education and the Commissioner for Children and Families shall jointly develop and agree to rules and present them to the State Board for adoption under 3 V.S.A. chapter 25 as follows:

* * *

(10) To establish a system by which the Agency of Education and Department for Children and Families shall jointly monitor and evaluate prekindergarten education programs to promote optimal results for children that support the relevant population-level outcomes set forth in 3 V.S.A. § 2311 and to collect data that will inform future decisions. ~~The Agency and Department shall be required to report annually to the General Assembly in January.~~ At a minimum, the system shall monitor and evaluate:

* * *

Sec. 8. 18 V.S.A. § 4635 is amended to read:

§ 4635. PRESCRIPTION DRUG COST TRANSPARENCY

* * *

~~(d)(1) The Attorney General shall provide a report to the General Assembly on or before December 1 of each year based on the information received from manufacturers pursuant to this section.~~ The Attorney General shall post the

~~report and~~ the public version of each manufacturer's information submitted pursuant to subdivision (c)(1)(B)(ii) of this section on the Office of the Attorney General's website.

(2) The Green Mountain Care Board shall post on its website ~~the report prepared by the Attorney General pursuant to subdivision (1) of this subsection~~ and the public version of each manufacturer's information submitted pursuant to subdivision (c)(1)(B)(ii) of this section, and may inform the public of the availability of the report and the manufacturers' justification information.

* * *

Sec. 9. 28 V.S.A. § 104 is amended to read:

§ 104. NOTIFICATION OF COMMUNITY PLACEMENTS

* * *

~~(c) The Commissioner of Corrections shall annually, by January 15, report to the House Committee on Corrections and Institutions and the Senate Committee on Institutions on the implementation of this section during the previous 12 months. [Repealed.]~~

Sec. 10. 33 V.S.A. § 4305 is amended to read:

§ 4305. COORDINATED SYSTEM OF CARE

* * *

~~(c) The Commissioners of Mental Health and for Children and Families and the Secretary of Education shall jointly submit to the General Assembly a report on the status of programs for children and adolescents with a severe~~

~~emotional disturbance and their families, which shall include a system of care plan. The report shall be submitted together with the general appropriation bill provided for by 32 V.S.A. § 701. The system of care plan shall:~~

~~(1) identify the characteristics and number of children and adolescents with a severe emotional disturbance in need of appropriate services, describe the educational, residential, mental health or other treatment services needed, describe currently available programs and resources, recommend a plan to meet the needs of such children, recommend priorities for the continuation or development of programs and resources, and make an assessment of the success of such programs; and~~

~~(2) provide information as available on the extent to which children and adolescents with a severe emotional disturbance have not received services, the characteristics and number of those children and adolescents who have not received services and recommendations on how to address their identified needs. [Repealed.]~~

* * *

Sec. 11. 2010 Acts and Resolves No. 161, Sec. 20 is amended to read:

Sec. 20. VERMONT CENTER FOR CRIME VICTIM SERVICES

The sum of \$50,000 is appropriated to the Vermont Center for Crime Victim Services for Americans with Disabilities Act improvements at domestic violence shelters. ~~Annually, on or before December 1, the Vermont Center for Crime Victim Services shall file with the commissioner of buildings and~~

~~general services a report which details the status of the improvements funded in whole or in part by state capital appropriations.~~

Total Appropriation – Section 20 \$50,000

Sec. 12. REPEALS

The following are repealed:

(1) 6 V.S.A. § 4825 (report concerning activities in support of water quality financial and technical assistance);

(2) 2007 Acts and Resolves No. 65, Sec. 112a(b)(2)(A) (report on utilization of services and expenses under Choices for Care);

(3) 2008 Acts and Resolves No. 192, Sec. 5.221(b) (report on use of appropriations for household weatherization);

(4) 2012 Acts and Resolves No. 113, Sec. 3 (report on Genuine Progress Indicator);

(5) 2015 Acts and Resolves No. 58, Sec. C.106 (Vermont Health Connect monthly reports);

(6) 2014 Acts and Resolves No. 179, Sec. E.100.5(g) (report on resources made available from the Vermont Enterprise Fund);

(7) 2014 Acts and Resolves No. 195, Secs. 3(f) and 4(b) (evaluate goals and performance of pretrial services and precharge programs);

(8) 2013 Acts and Resolves No. 68, Sec. 3 (report on concussions suffered by student athletes);

(9) 2018 Acts and Resolves No. 174, Sec. 1(c)(2) (Auditor report filed if a privatization contract has not achieved the required cost savings or complied with required performance measures); and

(10) 2019 Acts and Resolves No. 79, Sec. 10(b) (report on status of the Broadband Innovation Grant Program).

* * * Reports Extended Until 2030 Review * * *

Sec. 13. REPORTS REPEAL DELAYED

The reports set forth in this section shall not be subject to review under the provisions of 2 V.S.A. § 20(d) (expiration of required reports) until July 1, 2030:

(1) 3 V.S.A. § 168(f)(6) (Racial Disparities in the Criminal and Juvenile Justice System Advisory Panel report and recommendations);

(2) 10 V.S.A. § 280ee(d) (Vermont Economic Development Authority report concerning Broadband Expansion Loan Program activities);

(3) 10 V.S.A. § 325m(g) (Rural Economic Development Initiative report);

(4) 13 V.S.A. § 5256 (Office of Defender General annual report);

(5) 13 V.S.A. § 5415(c) (Department of Public Safety report concerning sex offender registry compliance);

(6) 18 V.S.A. § 909(e) (EMS Advisory Committee report concerning progress toward goals of five-year plan);

(7) 20 V.S.A. § 2367 (Vermont Criminal Justice Council report concerning use of electronic control devices);

(8) 20 V.S.A. § 2366(d) (Vermont Criminal Justice Council report concerning fair and impartial policing policies and training);

(9) 20 V.S.A. § 4624 (Department of Public Safety report on drone use);

(10) 24 V.S.A. § 1892(g) (quadrennial analysis of recommendations and conclusions of the tax increment financing capacity study and report);

(11) 29 V.S.A. § 160(e) (Department of Buildings and General Services Property Management Revolving Fund annual report);

(12) 32 V.S.A. § 3340(a) (Vermont Economic Progress Council report concerning Vermont Employment Growth Incentive Program).

* * * Reports Exempted from 2 V.S.A. § 20(d) * * *

Sec. 14. 3 V.S.A. § 3902 is amended to read:

§ 3902. OFFICE OF ECONOMIC OPPORTUNITY

* * *

(d) Annually, the Office shall provide a written report to the House Committees on Appropriations and on Energy and Digital Infrastructure, and to the Senate Committees on Appropriations and on Natural Resources and Energy on appropriations utilizing existing resources within State government available in the Office of Economic Opportunity's weatherization data management system that compiles performance data available on households weatherized in the past year to include the:

- (1) number of households weatherized;
- (2) average program expenditure per household for energy efficiency;
- (3) average percent in energy savings;
- (4) energy and nonenergy benefits combined;
- (5) benefits saved for every dollar spent;
- (6) average savings per unit for heating fuels;
- (7) gallons of oil saved related to the equivalent number of homes
heated;
- (8) projected number of households to be weatherized in the current
program year;
- (9) projected program expenditures for the current program year ending
March 31;
- (10) total number of all units that had weatherization deferred, and the
reasons why;
- (11) number of rental units that had weatherization deferred, and the
reasons why;
- (12) number of rental units deferred specifically because of vermiculite;
- (13) backlog of deferred rental units deferred specifically because of
vermiculite; and
- (14) potential energy savings for all deferred weatherization that do not
require disturbing the vermiculite.

Sec. 15. 3 V.S.A. § 1226 is amended to read:

§ 1226. COMMISSION REPORTS

* * *

(c) The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under subsection (b) of this section.

Sec. 16. 4 V.S.A. § 608 is amended to read:

§ 608. FUNCTIONS

* * *

(e) On or before the tenth Thursday after the convening of each biennial and adjourned session, the Committee shall report to the General Assembly its recommendation whether the candidates should continue in office, with any amplifying information that it may deem appropriate, in order that the General Assembly may discharge its obligation under Chapter II, § 34 of the ~~Constitution of the State of Vermont~~ Constitution. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection.

* * *

Sec. 17. 6 V.S.A. § 4710 is amended to read:

§ 4710. VERMONT FARM AND FOREST VIABILITY PROGRAM

* * *

(f) In collaboration with the Secretary of Agriculture, Food and Markets and the Commissioner of Forests, Parks and Recreation, the Vermont Housing

and Conservation Board shall report in writing to the Senate Committees on Agriculture and on Economic Development, Housing and General Affairs and the House Committees on Agriculture and Forestry and on Commerce and Economic Development on or before January 31 of each year with a report on the activities and performance of the Farm and Forest Viability Program. At a minimum, the report shall include an evaluation of the Program utilizing the performance goals and performance measures established in consultation with the Advisory Board under subsection (d) of this section. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection.

* * *

Sec. 18. 6 V.S.A. § 4825 is amended to read:

§ 4825. REPORTS

(a) Annually by January 15 of each year, the Secretary shall report to the General Assembly regarding activities in support of the objectives of this subchapter, including use of State, federal, and private funds:

* * *

(b) The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this section.

Sec. 19. 10 V.S.A. § 11 is amended to read:

§ 11. TREASURER'S LOCAL INVESTMENT ADVISORY COMMITTEE

* * *

(e) Report. On or before January 15, the Advisory Committee annually shall submit a report to the Senate Committees on Appropriations, on Economic Development, Housing and General Affairs, on Finance, and on Government Operations and the House Committees on Appropriations, on Commerce and Economic Development, on Ways and Means, and on Government Operations and Military Affairs. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection. The report shall include the following:

* * *

Sec. 20. 10 V.S.A. § 531 is amended to read:

§ 531. THE VERMONT TRAINING PROGRAM

* * *

(k) Report. Annually on or before January 15, the Secretary shall submit a report to the House Committee on Commerce and Economic Development and the Senate Committee on Economic Development, Housing and General Affairs. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection. In addition to the reporting requirements under section 540 of this title, the report shall identify:

* * *

Sec. 21. 10 V.S.A. § 2609a is amended to read:

§ 2609a. INCOME FROM LEASE OF MOUNTAINTOP

COMMUNICATION SITES

Annually on or before February 15, the Agency of Natural Resources shall submit a report to the Senate Committee on Natural Resources and Energy and the House ~~Committees~~ Committee on Energy and ~~Technology and on Natural Resources, Fish, and Wildlife~~ Digital Infrastructure containing an itemization of the income generated through the end of the previous fiscal year from the use of sites for communication purposes. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this section.

Sec. 22. 10 V.S.A. § 6503 is amended to read:

§ 6503. LEGISLATIVE APPROVAL

(a) The Committee shall report to the General Assembly its recommendation to approve or not to approve the petition for the facility together with such additional information and comment it deems appropriate. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection.

* * *

Sec. 23. 32 V.S.A. § 311 is amended to read:

§ 311. RETIREMENT FUNDS INTEGRITY REPORT

* * *

(b) At the request of the House ~~or Senate Committee on Government Operations or on Appropriations~~ Committee on Appropriations or on Government Operations and Military Affairs, the Senate Committee on Appropriations or on Government Operations, or the Joint Public Pension Oversight Committee, the State Treasurer and the Commissioner of Finance and Management shall present to the requesting committees the recommendations submitted under 3 V.S.A. § 471(n) and 16 V.S.A. § 1942(r).

(c) The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this section.

Sec. 24. 32 V.S.A. § 588 is amended to read:

§ 588. SPECIAL FUNDS; ORGANIZATION AND MANAGEMENT

All special funds shall be organized and managed in accordance with the provisions of this section.

* * *

(6) Accounting and reporting.

* * *

(B) In addition, the Commissioner shall annually report a list of any special funds created during the fiscal year. The list shall furnish for each fund its name, authorization, and revenue source or sources. The report for the prior fiscal year shall be submitted to the General Assembly through the Joint Fiscal Committee on or before December 1 of each year. The provisions of 2 V.S.A.

§ 20(d) (expiration of required reports) shall not apply to the report to be made under this subdivision.

Sec. 25. 3 V.S.A. § 3303 is amended to read:

§ 3303. REPORTING, RECORDS, AND REVIEW REQUIREMENTS

(a) Annual report and budget. The Secretary shall submit to the House Committee on Energy and Digital Infrastructure and the Senate Committee on Institutions, concurrent with the Governor's annual budget request required under 32 V.S.A. § 306, an annual report for information technology and cybersecurity. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection. The report shall reflect the priorities of the Agency and shall include:

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* * * Reports Modified * * *

Sec. 26. 2018 Acts and Resolves No. 119, Sec. 8 is amended to read:

Sec. 8. REPORTING; UTILIZATION BY SERVICE MEMBERS AND
VETERANS

(a) The Executive Director of the Division of Fire Safety shall, on or before February 1 of each even year, report to the House Committees on Commerce and Economic Development, on General, Housing, and Military Affairs, and on Government Operations and the Senate Committees on Economic Development, Housing and General Affairs and on Government Operations regarding:

* * *

(b) The Director of the Office of Professional Regulation shall, on or before February 1 of each even year, report to the House Committees on Commerce and Economic Development, on General, Housing, and Military Affairs, and on Government Operations and the Senate Committees on Economic Development, Housing and General Affairs and on Government Operations regarding:

* * *

(c) The Commissioner of Motor Vehicles shall, on or before February 1 of each even year, report to the House Committees on Commerce and Economic Development, on General, Housing, and Military Affairs, and on Government Operations and the Senate Committees on Economic Development, Housing and General Affairs and on Government Operations regarding the number of service members and veterans who, during the previous calendar year, were certified to perform inspections without being required to pass an examination as provided pursuant to 23 V.S.A. § 1227(b)(2).

(d) The Commissioner of Health shall, on or before February 1 of each even year, report to the House Committees on Commerce and Economic Development, on General, Housing, and Military Affairs, and on Government Operations and the Senate Committees on Economic Development, Housing and General Affairs and on Government Operations regarding the number of service members and veterans who, during the previous calendar year, were

deemed to have knowledge of the prevention of food-borne disease, be able to apply the Hazard Analysis Critical Control Point principles, and have met the criteria for “demonstration of knowledge” requirements set forth by the Department of Health in rule for the purposes of obtaining a food establishment license as provided pursuant to 18 V.S.A. § 4303(b) and the total number of food establishment licenses issued to those service members and veterans.

Sec. 27. 2011 Acts and Resolves No. 59, Sec. 15 is amended to read:

Sec. 15. COURT ADMINISTRATOR REPORT ON PUBLIC RECORDS
CASES

On or before January 15, 2012, and ~~annually~~ on even years thereafter, the Vermont court administrator’s office shall report to the senate and house committees on government operations regarding contested cases filed in the civil division of the superior court involving disputes under the Public Records Act, as set forth in 1 V.S.A. chapter 5, subchapter 4. The report shall include the number of Public Records Act contested cases filed annually in the civil division of the superior court, the disposition of such cases, and whether attorney’s fees were awarded in any of the cases. The court administrator shall submit a copy of a report required under this section to the secretary of state at the same time the report is submitted to the senate and house committees on government operations.

Sec. 28. 4 V.S.A. § 40 is amended to read:

§ 40. REPORT ON TEMPORARY EMPLOYEES

(a) Annually, on or before January 15 of every even year, the State Court Administrator shall submit a report to the House Committees on General and Housing and on Government Operations and Military Affairs and the Senate Committee on Government Operations identifying for each of the two prior calendar years:

(1) the total number of individuals employed by the Judiciary Department on a temporary basis who have worked in excess of 1,280 hours in the prior calendar year, excluding employees identified in 3 V.S.A. § 1011(7), (8)(A)–(D), (8)(F) and (G), and (8)(I)–(K);

(2) the total number of temporary positions in which one or more individuals have been employed for a combined total of more than 1,280 hours, excluding positions filled by employees identified in 3 V.S.A. § 1011(7), (8)(A)–(D), (8)(F) and (G), and (8)(I)–(K);

(3) the total number of hours worked by each temporary employee identified pursuant to subdivision (1) of this section; and

(4) the total number of years during which each temporary employee identified pursuant to subdivision (1) of this section has worked for the Judiciary Department.

(b) Notwithstanding subsection (a) of this section, the State Court Administrator need not submit the report if there were no temporary employees hired in the prior two calendar years.

Sec. 29. REPEAL

2014 Acts and Resolves No. 180, Sec. 2(c) (Vermont Criminal Justice Council report concerning use of electronic control devices) is repealed.

Sec. 30. 20 V.S.A. § 2367 is amended to read:

§ 2367. STATEWIDE POLICY; ELECTRONIC CONTROL DEVICES;
REPORTING

* * *

(f)(1) Every State, county, municipal, or other law enforcement agency and every constable who is not employed by a law enforcement agency shall report all incidents involving the use of an electronic control device to the Criminal Justice Council in a form to be determined by the Council.

(2) Annually, on or before November 15, the Criminal Justice Council shall report to the House Committees on Government Operations and Military Affairs and on Judiciary and to the Senate Committees on Government Operations and on Judiciary all incidents from the prior 12 months involving the use of an electronic control device, a review of compliance with standards, the adequacy of training and certification requirements, and the adequacy of funding for mental health collaboration.

* * *

Sec. 31. 20 V.S.A § 4662 is amended to read:

§ 4662. CYBERSECURITY ADVISORY COUNCIL

* * *

(g) Reports. On or before ~~January~~ February 15 each year, the Council shall ~~submit a written~~ report to the House Committees on Commerce and Economic Development, on Energy and Digital Infrastructure, on Government Operations and Military Affairs, and on Ways and Means and the Senate Committees on Economic Development, Housing and General Affairs, on Finance, and on Government Operations with a status update on the work of the Council and any recommendations for legislative action. The provisions of 2 V.S.A. § 20(d) (expiration of required reports) shall not apply to the report to be made under this subsection.

* * *

* * * Vermont Sister State Program * * *

Sec. 32. 3 V.S.A. § 2479 is added to read:

§ 2479. VERMONT SISTER STATE PROGRAM

(a) Creation and purpose.

(1) The Vermont Sister State Program is created within the Agency of Commerce and Community Development. The Agency shall provide support to the Program and to the Sister State Program Committee as required.

(2) The purpose of the Program is to strengthen Vermont's international engagement and to foster mutually beneficial relationships with national and

subnational governments abroad, with a goal of promoting cultural exchange, economic development, and educational cooperation.

(b) Program oversight.

(1) The Sister State Program Committee, composed of the following members, shall oversee the Program:

(A) the Secretary of Commerce and Community Development or designee;

(B) a member of the House of Representatives, appointed by the Speaker of the House;

(C) a member of the Senate, appointed by the Committee on Committees;

(D) the Chair of the Board of Trustees of the Vermont Council on World Affairs or designee;

(E) the Vermont Adjutant General or designee;

(F) the Chair of the Board of Trustees of the Vermont Arts Council or designee; and

(G) three members, as follows:

(i) one member with expertise in cultural exchange or in Peace Corps operations, appointed by the Governor;

(ii) one member representing a private institution of higher education, appointed by the Committee on Committees; and

(iii) one member representing a public institution of higher education, appointed by the Speaker.

(2) Members of the Committee shall serve two-year terms, provided that members appointed pursuant to subdivision (1)(G) of this subsection shall serve initial terms of three years each to establish staggered terms. Members may be reappointed.

(3) The Committee shall elect a chair and vice chair from among its members that shall each serve a two-year term.

(4) A majority of the membership shall constitute a quorum.

(c) Meetings.

(1) All meetings shall be called by the Chair, but in the event that the Committee does not have a chair, a meeting may be called by the Secretary of Commerce and Community Development or designee.

(2) The Committee shall meet:

(A) at least once quarterly, for the purpose of:

(i) evaluating current Program agreements;

(ii) proposing new Program agreements;

(iii) preparing its annual report; or

(iv) discussing any other matter that the Committee deems

relevant to its work; and

(B) to review and score an eligible Program application not later than 30 days after the Committee receives the application from the Agency, pursuant to subdivision (d)(3) of this section.

(d) Program application, review, and approval procedures.

(1) Development of application process. The Agency, in consultation with the Committee, shall develop a process by which an entity can apply and be considered for admission as a partner to the Program. This process shall include the development of:

(A) an official application to be in the Program;

(B) a confidential internal review procedure to be used by the Agency to review Program applicants for sensitive political, legal, ethical, and strategic factors;

(C) minimum eligibility requirements to be considered for the Program;

(D) a fixed-scoring system, including a rubric, to be uniformly applied by the Committee to evaluate all eligible applications;

(E) a memorandum of understanding template to be used and signed by the State and an approved Program partner that shall include a termination date; and

(F) any other necessary Program parameters, including the length of time for partner agreements to be in effect.

(2) Agency initial verification.

(A) When a Program application has been received by the Agency pursuant to this section, the Agency shall, before the Committee may meet to review the application:

(i) verify that the application meets the Program's minimum eligibility requirements; and

(ii) conduct a confidential internal review of the applicant.

(B) Not later than 10 days after completion of the Agency's initial verification and review of an application pursuant to subdivision (A) of this subdivision (2), the Agency shall send the Committee a copy of the application along with a summary of the Agency's analysis.

(C) The confidential internal review process conducted in subdivision (A)(ii) of this subdivision (2), along with any and all documents reviewed during that process, shall be exempt from public inspection and copying.

(3) Committee review and recommendation.

(A) The Committee, upon receiving an application that has received preliminary approval from the Agency, shall meet to review the application pursuant to subdivision (c)(2)(B) of this section not later than 30 days after receipt of the application from the Agency.

(B) If the Committee recommends that an application reviewed pursuant to subdivision (A) of this subdivision (3) be approved, the Committee shall submit its recommendation to the Governor along with a copy of the application not later than 30 days after completing its review of the application.

The Committee shall not send to the Governor an application that the Committee does not recommend be approved.

(4) Governor's review.

(A) The Governor shall have the sole authority to issue final approval or disapproval of a Sister State Program application that the Committee recommended be approved. The Governor shall send written notice of the Governor's decision to the Agency not later than 10 days after the Governor's decision.

(B) If the Governor disapproves a Program application, the Governor's notice in subdivision (A) of this subdivision (4) shall include a written explanation of why the Governor did not follow the recommendation of the Committee.

(C) Upon the Agency's receipt of the Governor's decision pursuant to subdivision (A) of this subdivision (4), the Agency shall notify the applicant of the Governor's decision not later than 30 days after the Agency receives notice of the Governor's decision.

(D) If the application is approved by the Governor, the Agency shall finalize a memorandum of understanding between the State and the Sister State Program applicant.

(5) Termination.

(A) The Committee may, at one of its meetings, propose to the Governor upon a majority vote that an active Sister State Program partnership be terminated.

(B) The Governor shall have the sole authority to terminate an active Sister State Program partnership.

(e) Reporting. The Committee shall submit an annual report not later than January 15 of each year to the Governor and to the House Committee on Commerce and Economic Development and the Senate Committee on Economic Development, Housing and General Affairs that includes the following:

(1) an executive summary of key development and outcomes of the Program;

(2) a description of Committee activities, including a summary of attendance and decisions at its meetings;

(3) updates on the Program, including an evaluation of sister state applications, new partners, significant developments, metrics of success, and challenges;

(4) a description of stakeholder engagement with the Program;

(5) a financial overview, including a summary of funding sources and expenditures; and

(6) an outlook for the Program, which shall include strategic objectives, potential new agreements, and growth opportunities for the next year.

(f) Compensation and reimbursement.

(1) For attendance at meetings during adjournment of the General Assembly, a legislative member of the Committee serving in the member's capacity as a legislator shall be entitled to per diem compensation and reimbursement of expenses pursuant to 2 V.S.A. § 23 for not more than eight meetings per year. These payments shall be made from monies appropriated to the General Assembly.

(2) Other members of the Committee shall be entitled to per diem compensation and reimbursement of expenses as permitted under 32 V.S.A. § 1010 for not more than eight meetings per year. These payments shall be made from monies appropriated to the Agency of Commerce and Community Development.

* * * Vermont-Ireland Trade Commission * * *

Sec. 33. 9 V.S.A. chapter 111B is amended to read:

CHAPTER 111B. TRADE COMMISSIONS

§ 4129. VERMONT-IRELAND TRADE COMMISSION

(a) The Vermont-Ireland Trade Commission is established within the State Treasurer's office to advance bilateral trade and investment between Vermont and Ireland. The Commission shall consist of ~~seven~~ nine members as follows:

- (1) two members, appointed by the Governor;
- (2) two members, appointed by the Speaker of the House;

(3) two members, appointed by the Senate Committee on Committees;

and

(4) the State Treasurer or designee;

(5) the Commissioner of Economic Development or designee; and

(6) the President of the University of Vermont or designee.

* * *

(c) The members of the Commission, ~~except for the State Treasurer or designee,~~ appointed pursuant to subdivisions (a)(1)–(3) of this section:

(1) shall be appointed for terms of four years each and shall continue to serve until their successors are appointed, except that in order to achieve staggered terms, the two members appointed by the Governor shall serve initial terms of two years each and the two members appointed by the Speaker of the House shall serve initial terms of three years each;

(2) ~~Members~~ may be reappointed upon the expiration of the member's term;

(3) ~~A member serves~~ serve at the pleasure of the member's appointing authority; and

(4) ~~Not shall consist of not~~ more than two members ~~serving on the Commission may be members~~ of the General Assembly.

* * *

(f) The Commission, in coordination with the State Treasurer's office, shall submit a written report with its findings, results, and recommendations to the

Governor and the General Assembly within one year ~~of~~ following its initial organizational meeting and on or before December 1 of each succeeding year for the activities of the current calendar year. The report shall also include a:

(1) disclosure listing any in-kind contributions received by specific members of the Commission through their work in the Commission in the current calendar year; and

(2) detailed accounting from the State Treasurer's office of the:

(A) administrative expenses that have been paid with funds raised by the Commission, pursuant to subsection (g) of this section; and

(B) funds raised and donations, grants, and bequests received through the Commission including the name, country of residence, and amount donated of each contributor.

(g)(1) The Vermont-Ireland Trade Commission is authorized to raise funds, through direct solicitation or other fundraising events, alone or with other groups, and accept donations, grants, and bequests from individuals, corporations, foundations, governmental agencies, and public and private organizations and institutions, to defray the Commission's administrative expenses ~~and to carry out its purposes as set forth in this chapter.~~

(2) The funds, donations, grants, or bequests received pursuant to ~~this chapter~~ subdivision (1) of this subsection shall be deposited in a bank account and allocated ~~annually~~ by the State Treasurer's office to defray the Commission's administrative expenses ~~and carry out its purposes.~~ Any monies

so withdrawn shall not be used for any purpose other than the payment of administrative expenses under incurred pursuant to this chapter section and shall be itemized and tracked for reporting purposes by the State Treasurer's office. Interest earned shall remain in the bank account. The State Treasurer shall include the balance of the account in the annual reporting required pursuant to subsection (f) of this section.

(3) For purposes of this section, "administrative expenses" does not include any:

(A) expenses related to:

(i) campaign or election activity; or

(ii) food or beverages provided at official Commission meetings;

or

(B) other expense that is not specific to the administrative functions of the Commission.

(h) Members of the Commission shall not receive any compensation or be entitled to reimbursement of expenses by the State of Vermont or from the fund managed by the State Treasurer pursuant to subsection (g) of this section for their service on the Commission.

Sec. 34. REPORT ON THE FUTURE OF THE VERMONT-IRELAND TRADE COMMISSION

On or before December 1, 2029, the Vermont-Ireland Trade Commission shall submit a written report to the House Committee on Commerce and

Economic Development and to the Senate Committee on Economic

Development, Housing and General Affairs with the following information:

(1) a summary of the accomplishments of the Commission since its inception;

(2) a detailed analysis as to how the Commission has served its legislative purposes pursuant to 9 V.S.A. § 4129(b); and

(3) an accounting on funds raised and details on gifts received pursuant to 9 V.S.A. § 4129(g) since the Commission's inception.

* * * Effective Dates * * *

Sec. 35. EFFECTIVE DATES

(a) Secs. 1–31 shall take effect on July 1, 2026.

(b) This section and Secs. 32–34 shall take effect on passage.

Date Governor signed bill: June 17, 2026